



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND MARIANAS
PSC 455, BOX 195
FPO AP 96540-2937

J&A No. ACQ21-25-01

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

Naval Facilities Engineering Systems Command Marianas (NAVFAC Marianas), Guam.

2. Description of the Action Being Approved.

Award of a bridge contract on a sole source basis to existing contract N40192-20-D-1800 Environmental IDIQ Services for Hazardous Waste, Hazardous Material, Other Regulated Waste, and Spill Response at Joint Region Marianas, Guam. The requirement includes a two-month extension and four one-month options, as needed. The bridge contract will be implemented under the statutory authority at 10 U.S.C. 3204(a)(2), Unusual and compelling urgency.

3. Description of Supplies/Services.

The contractor shall provide environmental services for hazardous waste (HW), hazardous material, other regulated waste, and spill response for all Supported Components and Tenant Commands under the Joint Region Marianas (JRM) on Guam. The work includes operation of a Conforming Storage Facility (CSF); management of Less-than-90-Day Storage Facilities; management of satellite accumulation sites at Naval Base Guam and initial accumulation points at Naval Support Activity Andersen; daily management, collection and disposal of hazardous waste, hazardous material, and other regulated waste such as but not restricted to asbestos, lead-based paint, and polychlorinated biphenyls; occasional management, disposal, and collection of non-HW; sampling, testing, and laboratory analysis for hazardous waste, regulated waste, and unknown waste determination; oil and hazardous substance spill response, cleanup, sampling, laboratory analysis, and disposal. The bridge contract shall be made within the limits and at the schedule of rates specified in the existing contract and shall not exceed the Indefinite Delivery Indefinite Quantity (IDIQ) contract maximum of [REDACTED]. The current contract price of [REDACTED] and the estimated cost of the bridge contract at [REDACTED] are within the IDIQ contract maximum. There will be no change in the contract schedule of rates nor the maximum limitation of [REDACTED]. Fiscal year 2025 funds are available for this contract action.

Period of Performance (POP):

2 Month Extension	10 April 2025 – 09 June 2025
Option Month 1 (OM1)	10 June 2025 – 09 July 2025
Option Month 2 (OM2)	10 July 2025 – 09 August 2025
Option Month 3 (OM3)	10 August 2025 – 09 September 2025
Option Month 4 (OM4)	10 September 2025 – 09 October 2025

Independent Government Cost Estimate (IGCE):

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(2), Unusual and compelling urgency.

5. Rationale Justifying Use of Cited Statutory Authority.

A bridge, or short-term extension of contract N40192-20-D-1800 is required to continue providing HW management services and HW spill response capabilities for the JRM supported Components, and Tenant Commands until the competitive follow-on contract is in full-performance. NAVFAC Marianas is in the process of selecting the follow-on HW provider. However, the follow-on contract will not be awarded in time as additional time is required to conduct discussions, evaluate revised proposals and final proposal revisions, prepare reports, and obtain funding and approvals and provide for contract award announcement, which will result in a lapse of services as the current contract expires on 09 April 2025.

Awarding this extension to the incumbent contractor is necessary as they currently operate the CSF, and are already mobilized with the necessary workforce, equipment, and collection vehicles. Although market research suggests other contractors are capable of providing the HW requirements, not awarding to the incumbent contractor will result in protracted timelines for contract administration and mobilization of workforce, equipment, and collection vehicles that would cause unacceptable lapses of critical HW services.

Additionally, HW collection is considered highly technical and by nature of the industry, the selected contractor must have a thorough understanding of Resource Conservation and Recovery Act and U.S. Department of Transportation regulations to ensure environmental services provided for hazardous materials, hazardous waste, non-hazardous waste, other regulated waste, and spill response programs are in compliance with all applicable Federal and local statutes and regulations, Executive Orders, Department of Defense (DoD) and Component-specific permits, policies, instructions, guidance, and requirements. Further, if other than the incumbent contractor is awarded, additional time will be needed to process clearances, and provide the proper passes for access to the different locations throughout the area of responsibility.

An extension of two months with options to this contract is requested to allow additional time for the follow-on contract to be awarded and for the contractor to mobilize. Failure to extend the contract will result in a gap of critical HW services to DoD Installations, tenant commands, as well as, port calls to Naval Base Guam for the United States Navy. Without a HW contractor in place to provide these critical services, the DoD activities on Guam is at risk of non-compliance with existing federal and territorial laws, and subject to notices of non-compliance and monetary fines.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

Market research was conducted by reviewing the Market Research Report for the new follow-on contract as the requirements are the same or similar. Market research was conducted in accordance with FAR Part 10 to determine sources capable of satisfying the requirement exist, and the size status of potential sources. Based on market survey results, and responses received from the sources sought notice, there is a reasonable expectation of obtaining offers from at least two or more responsible small business concerns that are competitive in terms of market prices, quality, and delivery.

However, only the incumbent contractor would be able to provide the required services in the limited period of performance as the contractor operates the CSF, transport the material, and is mobilized with the necessary workforce, equipment, and collection vehicles and therefore, the only reasonable means to accomplish the work given the urgent circumstances.

In accordance with FAR 6.305, the approved J&A shall be posted in the government-wide point of entry on SAM.gov within 30 days after award of the bridge contract.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the services covered by this J&A will be fair and reasonable based on a comparison of the proposed prices to historical prices paid, whether by the Government or other than the Government, for the same or similar items, and current prices in the IDIQ contract schedule of rates.

8. Actions to Remove Barriers to Future Competition.

The market research performed for this action is based on responses provided on the solicitation for the follow-on contract. The results of the market research indicate that while additional sources may be available and interested, competition would result in serious injury, financial or other, to the Government. Additionally, only the incumbent contractor would be able to prosecute the requirements without significant costs in mobilization and preparatory work. The follow-on contract is a competitive small business set-aside anticipated to be awarded in April 2025.

CERTIFICATIONS AND APPROVAL

